Terms of Service

Effective Date: 2 November 2026
Last Updated: 2 November 2026
Legal Entity: Thyleads Private Limited, operating Harvin.ai

These Terms of Service govern your use of Harvin.ai, a product operated by Thyleads Private Limited. By creating an account, executing an Order Form, purchasing a subscription or otherwise using Harvin, you agree to these Terms.

1. Harvin Service

Harvin provides software for sales development, account intelligence, sales engagement, communications, workflow management and related revenue operations activities. Features may include email, CRM workflows, calling, calendar functionality, enrichment, account research, campaigns, reporting, recommendations and third-party integrations.

2. Accounts

You are responsible for maintaining the confidentiality of your login credentials and for activity occurring through your account. Customers are responsible for managing authorised users and permissions.

3. Permitted Use

- Use Harvin only for lawful business purposes
- Follow these Terms and applicable law
- Stay within the usage limits of your subscription or Order Form

4. Prohibited Use

- Violate applicable law
- Send unlawful spam or unsolicited communications
- Engage in harassment, fraud or deception
- Unlawfully collect or process personal information
- Violate marketing, calling or messaging rules
- Record calls unlawfully
- Upload malware
- Attempt unauthorised access
- Interfere with platform security
- Reverse engineer Harvin except where law expressly permits
- Misuse third-party integrations
- Infringe intellectual property rights
- Use Harvin for illegal, discriminatory or abusive activities

5. Customer Data

Customer retains ownership of Customer Data. Customer grants Harvin the limited rights necessary to host, process, transmit and otherwise handle Customer Data to provide, secure, support and operate the service in accordance with these Terms and the Data Processing Addendum.

6. Privacy and Data Protection

Our Privacy Policy explains how we process personal information for our own purposes. Where Harvin processes Customer Personal Data on behalf of Customer, the Data Processing Addendum applies.

7. Third-Party Services

Harvin integrates with third-party services. Use of a third-party service may be subject to that provider's terms and privacy practices. Harvin is not responsible for third-party services outside our reasonable control.

8. Email, Calling and Outreach

Customer is responsible for ensuring that communications conducted through Harvin comply with applicable laws governing commercial email, telemarketing, telephone calls, SMS, messaging, call recording, privacy, consent, suppression and opt-out requirements.

9. AI-Assisted Features

Harvin may provide generated content, research, scoring, recommendations or other automated assistance. Outputs may be incomplete or inaccurate. Users must review outputs before relying on or using them. Unless expressly agreed otherwise, Harvin does not make legally binding or employment decisions on behalf of customers based solely on generated recommendations.

10. Intellectual Property

Harvin and its licensors retain all rights in the Harvin platform, software, design, documentation, trademarks and underlying technology. Customer retains ownership of Customer Data.

11. Fees and Payment

Fees, billing cycles, usage allowances and payment terms are stated on the applicable pricing page, checkout page or Order Form. Fees are exclusive of applicable taxes unless expressly stated otherwise.

12. Suspension

Harvin may suspend access where reasonably necessary due to non-payment, security threat, suspected fraud, unlawful use, material breach, or conduct creating material risk to Harvin, another customer or a third party.

13. Termination

Either party may terminate as permitted by the applicable Order Form or subscription terms. Upon termination, Customer's right to use the service ends. Data return and deletion are governed by the applicable agreement and DPA.

14. Warranty Disclaimer

Harvin is provided on an 'as available' basis. To the maximum extent permitted by applicable law, Harvin does not warrant that the service will be uninterrupted, error-free or suitable for every particular purpose.

15. Limitation of Liability

To the maximum extent permitted by applicable law, neither party will be liable for indirect, incidental, special, punitive or consequential damages, or loss of profits, revenue, goodwill or anticipated savings arising from use of the service.

Unless an Order Form or negotiated agreement provides otherwise, each party's aggregate liability arising from the service will not exceed the fees paid or payable by Customer to Harvin during the twelve months immediately preceding the event giving rise to the claim. This limitation does not apply where liability cannot legally be limited.

16. Indemnity

Customer will defend and indemnify Harvin against third-party claims arising from Customer's unlawful use of Harvin, Customer Data or Customer communications, to the extent caused by Customer's violation of applicable law or these

Terms.

17. Governing Law

These Terms are governed by the laws of India, without regard to conflict-of-law principles. The courts having jurisdiction over the registered office of Thyleads Private Limited will have jurisdiction, unless the parties agree otherwise in an Order Form or negotiated agreement.

18. Changes

Harvin may update these Terms from time to time. Material changes will become effective as stated in the updated Terms or as otherwise communicated where required.

Contact
Thyleads Private Limited, operating Harvin.ai
#164, 1st Cross, 1st Main Road, AECS Layout, Hebbal, Bengaluru, Karnataka 560094, India
Email: admin@harvin.ai
Phone: +91 8769673818